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File No: EXP202300932

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On September 27, 2022, Mr. A.A.A. (hereinafter, the claimant) submitted a "Complaint against an entity for disagreement with what was declared to the Central Risk Information" to the Bank of Spain, in which he considers that the debt claimed by COFIDIS S.A., BRANCH IN SPAIN (hereinafter, Cofidis or the respondent) has expired and requests its removal. The Central Risk Information of the Bank of Spain (CIRBE) responded to him on October 25, 2022, indicating that the data processing carried out by that entity is regulated by its specific regulations and, in particular, the exercise of the right to rectification/cancellation of the personal data processed by it is governed by the provisions of Articles 65 and 66 of Law 44/2002, of November 22, on Measures for the Reform of the Financial System, developed by Circular 1/2013, of May 24, from the Bank of Spain, on the Central Risk Information. They indicate that they will process his request with Cofidis and that he will be kept duly informed. The claimant states that the respondent has not replied.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the respondent, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations. The representative of the respondent states that the complaint filed by the claimant, through the Bank of Spain, was duly responded to the Bank of Spain by a letter dated November 18, 2022, indicating that the debt had been judicialized and was in the execution phase. To prove this, they attach a copy of the execution order, dated October 17, 2017, from the Court of First Instance, ***COURT.1. Consequently, the debt has not expired. They point out that "(...) it is important to emphasize that, according to the 'Circular 1/2021, of January 28, from the Bank of Spain, (...) the holder of a credit who considers that the data declared to the Central Risk Information in their name is inaccurate, may directly contact the entity for its rectification or request the Bank of Spain to process their complaint. In the first case, the entity must respond to the holder, and in the second, the response must be directed to the CIR. Hence, in this case, since the complaint was filed by Mr. A.A.A. before the CIR, Cofidis sent the response to that entity, in compliance with the aforementioned regulations."

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the satisfaction of the claimant's claims. Consequently, on March 7, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing. The aforementioned agreement granted the respondent a hearing period, so that within fifteen working days it could present the allegations it deemed appropriate, reiterating, in summary, that it responded to the CIRBE regarding the claimant's request, which was the body that referred the exercise to them. "Without prejudice to the above, we have proceeded to send to the claimant's email address the response that Cofidis sent to the CIRBE," denying the requested deletion since the debt had been judicialized.

FOURTH: After examining the document submitted by the respondent, it is forwarded to the claimant, so that, within fifteen working days, they may formulate any allegations they deem appropriate, not having submitted allegations within the established period.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data is

competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states that "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in its Article 57, among them, to enforce the Regulation and promote the...

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awareness of the controllers and processors regarding the obligations that pertain to them, as well as addressing the complaints submitted by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation for controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, prior to the admission for processing of the complaint that gives rise to this procedure, the complaint was forwarded to the respondent for analysis, to respond to this Agency within one month, and to provide evidence of having given the complainant the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

The result of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on March 7, 2023, for the purposes provided in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing. This admission agreement determines the opening of the present procedure for failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"1. When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

It is not deemed appropriate to clarify administrative responsibilities within the framework of a sanctioning procedure, whose exceptional nature implies that, whenever possible, preference is given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure, the guarantees and rights of the complainant are duly restored.

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III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to comply with such a request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party falls on the controller.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase the personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a), and this is not based on another legal ground;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law applicable to the controller;

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f) the personal data has been obtained in connection with the offer of information society services mentioned in Article 8, paragraph 1.

2. When personal data has been made public and the data controller is obliged, under the provisions of paragraph 1, to delete such data, the data controller, taking into account the available technology and the cost of its application, shall adopt reasonable measures, including technical measures, to inform controllers who are processing the personal data of the data subject's request for deletion of any link to such personal data, or any copy or replica thereof.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

- a) to exercise the right to freedom of expression and information;
- b) for compliance with a legal obligation requiring the processing of data imposed by Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, to the extent that the right referred to in

paragraph 1 could make it impossible or seriously impede the achievement of the objectives of that processing, or

e) for the formulation, exercise, or defense of claims."

V

Conclusion

Circular 1/2013, of May 24, on the Central Risk Information establishes a special regime for the exercise of the rights of data subjects.

This circular has been amended by Circular 1/2021, of January 28, from the Bank of Spain.

The current wording of Rule Twentieth, points 1 to 3, of Circular 1/2013 is as follows:

1. If the holder considers that the data declared to the CIR in their name is inaccurate or incomplete, they may directly contact the declaring entity or entities and request its rectification or deletion, or request the Bank of Spain to process their complaint, for which they must identify the data they consider erroneous, as well as justify in writing the reasons and scope of their request, indicating in their application which data they are referring to and the correction that needs to be made; they may provide, where applicable, supporting documentation of the inaccuracy or incomplete nature of the data being processed.

2. The request for rectification or deletion before the Bank of Spain can be made electronically – through the Virtual Office – or in person – at the CIR itself or at any branch of the Bank of Spain – or sent in writing to the CIR, with the identification and signature requirements for the request being those mentioned in the regulation.

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Nineteenth. The Bank of Spain shall immediately forward the requests for rectification or deletion to the entity or entities declaring the supposedly inaccurate or incomplete data. While the declaring entities respond to the request for rectification or deletion submitted through the Bank of Spain, the CIR shall suspend the transfer to third parties of the data concerning the request, as well as of the data congruent with it that are recorded in their files as a result of previous and subsequent declarations.

3. The entities must respond to the data subject and, where applicable, to the CIR (when the claim has been processed through the Bank of Spain) within a maximum period of fifteen working days if the claimant is a natural person or twenty working days if it is a legal entity. The period shall be counted from the receipt of the claim at any of the entity's offices. If the entity agrees to the request made by the claimant, it must immediately send a supplementary declaration to the CIR with the rectifications or deletions of all the erroneously declared data. The CIR, in turn, will process the rectifications communicated by the entities, unblock the transfer of data, and communicate the corrected data to the entities to which it had previously transferred the erroneous data. If, on the contrary, the entity reaffirms its declaration, it must justify the reasons for its decision. In this latter case, the CIR will extend the suspension of the transfer of the disputed data for two more months, unless the data subject accepts the justification provided by the entity, in which case the data will be immediately unblocked.

That is to say, it is the declaring entities that must respond to the requests for rectification and deletion from the interested parties, and when the request is submitted to the BE, they must also inform the BE of their decision.

In this case, from the examination of the documentation provided, it has been verified that the party being claimed responded to the Bank of Spain denying the requested deletion, and during the instruction of the present procedure, it has also responded to the claiming party informing them of said denial.

Consequently, it is appropriate to estimate, for formal reasons, the claim presented as it has been addressed out of time.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ESTIMATE for formal reasons, the claim made by Mr. A.A.A., against COFIDIS S.A., BRANCH IN SPAIN. However, the issuance of a new certification by the claimed party is not appropriate, as the response was issued out of time, and no additional actions are required from the responsible party.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to COFIDIS S.A., BRANCH IN SPAIN.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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